

Product Classification & Regulation

Section 33EE ://Section 33EE is important because it provides the legal criteria for identifying adulterated Ayurvedic, Siddha and Unani drugs. //

TITLE:

Adulterated Ayurvedic, Siddha or Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Classification & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Act, 1940 – Section 33EE

PLAIN ENGLISH SUMMARY:

An Ayurvedic, Siddha or Unani drug is considered adulterated if it contains filthy, putrid, decomposed, harmful or toxic substances, is prepared, packed or stored under insanitary conditions, uses an unsafe container, contains an unauthorized colour, or has another substance mixed into it that reduces its quality or strength. Natural decomposition alone does not make a drug adulterated if it is not caused by negligence and does not make the drug harmful to health.

THE EXACT LEGAL TEXT:

33EE. Adulterated drugs.—For the purposes of this Chapter, an Ayurvedic, Siddha or Unani drug shall be deemed to be adulterated,—

- (a) if it consists, in whole or in part, of any filthy, putrid or decomposed substance; or
- (b) if it has been prepared, packed or stored under insanitary conditions whereby it may have been contaminated with filth or whereby it may have been rendered injurious to health; or
- (c) if its container is composed, in whole or in part, of any poisonous or deleterious substance which may render the contents injurious to health; or
- (d) if it bears or contains, for purposes of coloring only, a colour other than one which is prescribed; or
- (e) if it contains any harmful or toxic substance which may render it injurious to health; or
- (f) if any substance has been mixed therewith so as to reduce its quality or strength.

Explanation.—For the purpose of clause (a), a drug shall not be deemed to consist, in whole or in part, of any decomposed substance only by reason of the fact that such decomposed substance is the result of any natural decomposition of the drug:

Provided that such decomposition is not due to any negligence on the part of the manufacturer of the drug or the dealer thereof and that it does not render the drug injurious to health.

KEYWORDS/TRIGGERS:

adulterated Ayurvedic drug, Section 33EE, adulterated ASU medicine, drug adulteration, Ayurvedic drug quality, harmful substances, insanitary conditions, reduced drug strength

Section 33EEA ://Section 33EEA is important because it legally defines when an Ayurvedic/Siddha/Unani drug is considered fake or spurious. //

TITLE:

Spurious Ayurvedic, Siddha or Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Classification & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Act, 1940 – Section 33EEA

PLAIN ENGLISH SUMMARY:

An Ayurvedic, Siddha or Unani drug is considered spurious if it is falsely presented as another drug, imitates or substitutes another drug in a misleading way, uses the name of a fictitious manufacturer, is replaced wholly or partly by another substance, or falsely claims to be manufactured by a particular manufacturer. This section helps identify fake or deceptively represented ASU medicines.

THE EXACT LEGAL TEXT:

33EEA. Spurious drugs.—For the purposes of this Chapter, an Ayurvedic, Siddha or Unani drug shall be deemed to be spurious—

(a) if it is sold, or offered or exhibited for sale, under a name which belongs to another drug; or

(b) if it is an imitation of, or is a substitute for, another drug or resembles another drug in a manner likely to deceive, or bears upon it or upon its label or container the name of another drug, unless it is plainly and conspicuously marked so as to reveal its true character and its lack of identity with such other drug; or

(c) if the label or container bears the name of an individual or company purporting to be the manufacturer of the drug, which individual or company is fictitious or does not exist; or

(d) if it has been substituted wholly or in part by any other drug or substance; or

(e) if it purports to be the product of a manufacturer of whom it is not truly a product.

KEYWORDS/TRIGGERS:

spurious Ayurvedic drug, Section 33EEA, fake Ayurvedic medicine, spurious ASU drug, counterfeit medicine, false manufacturer, drug imitation, drug substitution

Section 33EEB ://Section 33EEB is important because it requires ASU drugs manufactured for sale or distribution to comply with prescribed standards. //

TITLE:

Regulation of Manufacture for Sale of Ayurvedic, Siddha and Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Classification & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Act, 1940 – Section 33EEB

PLAIN ENGLISH SUMMARY:

No person can manufacture an Ayurvedic, Siddha or Unani drug for sale or distribution unless it complies with the prescribed standards applicable to that drug.

THE EXACT LEGAL TEXT:

33EEB. Regulation of manufacture for sale of Ayurvedic, Siddha and Unani drugs.—No person shall manufacture for sale or for distribution any Ayurvedic, Siddha or Unani drug except in accordance with such standards, if any, as may be prescribed in relation to that drug.

KEYWORDS/TRIGGERS:

ASU drug manufacturing, Section 33EEB, Ayurvedic drug standards, manufacturing standards, Ayurvedic medicine compliance, drug manufacturing regulation, ASU manufacturing, prescribed standards

Section 33EEC ://Section 33EEC is important because it sets key legal restrictions on the manufacture, sale and distribution of ASU drugs and requires licensing and proper ingredient labelling. //

TITLE:

Prohibition of Manufacture and Sale of Certain Ayurvedic, Siddha and Unani Drugs

JURISDICTION:

India

CATEGORY:

Product Classification & Regulatory Compliance

SOURCE CITATION:

Drugs and Cosmetics Act, 1940 – Section 33EEC

PLAIN ENGLISH SUMMARY:

This section prohibits the manufacture, sale, stocking, exhibition or distribution of misbranded, adulterated or spurious ASU drugs. It also requires patent or proprietary medicines to display the true list of ingredients and requires ASU drugs manufactured for sale or distribution to be made under a valid licence and according to prescribed conditions.

THE EXACT LEGAL TEXT:

33EEC. Prohibition of manufacture and sale of certain Ayurvedic, Siddha and Unani drug.—From such date as the State Government may, by notification in the Official Gazette, specify in this behalf, no person, either by himself or by any other person on his behalf, shall—

(a) manufacture for sale or for distribution—

(i) any misbranded, adulterated or spurious Ayurvedic, Siddha or Unani drugs;

(ii) any patent or proprietary medicine, unless there is displayed in the prescribed manner on the label or container thereof the true list of all the ingredients contained in it; and

(iii) any Ayurvedic, Siddha or Unani drug in contravention of any of the provisions of this Chapter or any rule made thereunder;

(b) sell, stock or exhibit or offer for sale or distribute, any Ayurvedic, Siddha or Unani drug which has been manufactured in contravention of any of the provisions of this Act, or any rule made thereunder;

(c) manufacture for sale or for distribution, any Ayurvedic, Siddha or Unani drug, except under, and in accordance with the conditions of, a licence issued for such purpose under this Chapter by the prescribed authority:

Provided that nothing in this section apply to Vaidyas and Hakims who manufacture Ayurvedic, Siddha or Unani drug for the use of their own patients:

Provided further that nothing in this section shall apply to the manufacture, subject to the prescribed conditions, of small quantities of any Ayurvedic, Siddha or Unani drug for the purpose of examination, test or analysis.

KEYWORDS/TRIGGERS:

Section 33EEC, ASU drug licence, Ayurvedic drug manufacturing, misbranded drug, adulterated drug, spurious drug, patent proprietary medicine, ingredient labelling